

WHITE, J., concurring in judgment

424 U.S.

MR. JUSTICE STEVENS took no part in the consideration or decision of this case.

MR. JUSTICE WHITE, with whom MR. JUSTICE BRENNAN and MR. JUSTICE MARSHALL join, concurring in the judgment.

I concur in the judgment of the Court and in much of its reasoning. I agree with the Court that the gravamen of the complaint in this case is that the prosecutor knowingly used perjured testimony; and that a prosecutor is absolutely immune from suit for money damages under 42 U. S. C. § 1983 for presentation of testimony later determined to have been false, where the presentation of such testimony is alleged to have been unconstitutional solely because the prosecutor did not believe it or should not have believed it to be true. I write, however, because I believe that the Court's opinion may be read as

U. S. 103, 110 (1935); *Alcorta v. Texas*, 355 U. S. 28, 31-32 (1957); *Brady v. Maryland*, 373 U. S. 83, 86 (1963); *Miller v. Pate*, 386 U. S. 1, 4-6 (1967); *Giglio v. United States*, 405 U. S. 150, 151-155 (1972). It is also illustrated by the history of this case: at least one of the charges of prosecutorial misconduct discussed by the Federal District Court in terms of suppression of evidence had been discussed by the Supreme Court of California in terms of use of perjured testimony. Compare *Imbler v. Craven*, 298 F. Supp., at 809-811, with *In re Imbler*, 60 Cal. 2d, at 566-567, 387 P. 2d, at 12-13. Denying absolute immunity from suppression claims could thus eviscerate, in many situations, the absolute immunity from claims of using perjured testimony.

We further think MR. JUSTICE WHITE's suggestion, *post*, at 440 n. 5, that absolute immunity should be accorded only when the prosecutor makes a "full disclosure" of all facts casting doubt upon the State's testimony, would place upon the prosecutor a duty exceeding the disclosure requirements of *Brady* and its progeny, see 373 U. S., at 87; *Moore v. Illinois*, 408 U. S. 786, 795 (1972); cf. *Donnelly v. DeChristoforo*, 416 U. S. 637, 647-648 (1974). It also would weaken the adversary system at the same time it interfered seriously with the legitimate exercise of prosecutorial discretion.